

13. 9:00 AM CASE NUMBER: MSC20-01624

CASE NAME: RAFAY VS FCA US, LLC

*HEARING ON MOTION IN RE:

FILED BY:

TENTATIVE RULING:

Plaintiff Rayan Rafay ("Plaintiff") filed a Motion for Attorneys' Fees, Costs and Expenses on December 8, 2025 (the "Motion for Fees and Costs"). Plaintiff seeks an award of \$50,451.00 in attorneys' fees, with a 1.35 multiplier of \$17,657.85, totaling \$68,108.85, plus \$4,603.30 in costs, not inclusive of any further fees incurred on this motion, as against defendant FCA US, LLC ("Defendant"). The Motion for Fees and Costs was set for hearing on April 27, 2026. The Court *sua sponte* continued the matter from April 27, 2026 to June 15, 2026 and, later, to June 29, 2026. The motion is opposed.

Background

This matter was resolved by way of a settlement upon Plaintiff's acceptance of Defendant's 998 offer (the "Settlement Agreement"). See Declaration of Dhara Chandy filed December 8, 2025 ("Chandy Decl.") ¶¶63-64 and **Exhibit 2** thereto. Among the terms was a settlement payment of \$118,974.60 payable to Plaintiff by Defendant. Settlement Agreement, ¶1, Chandy Decl., **Exhibit 2**. The agreement also includes a provision that Plaintiff is the prevailing parties and provides for Plaintiff's recovery of "reasonable costs, expenses, and attorneys' fees" in connection with the action:

3. If the parties are unable to resolve attorney's fees and costs, Plaintiff may seek reasonable costs, expenses and attorneys' fees pursuant to a properly noticed motion pursuant to Civil Code Section 1794(d). FCA agrees that Plaintiff is the prevailing party for the purposes of a fee motion, as defined by Civil Code section 1032. If a motion is needed, this shall not be construed as a waiver of FCA's rights to assert arguments in opposition thereto based on the reasonableness of the fees, costs or expenses sought.

Settlement Agreement, ¶13, Chandy Decl., **Exhibit 2**.

The Motion for Fees and Costs is supported by the declaration of Plaintiff's attorneys summarizing the conduct of the litigation and outcome achieved. See Chandy Decl., ¶13 *et seq.*; see also Declaration of Payam Shahian filed December 8, 2025 ("Shahian Decl.") ¶13 *et seq.*

Counsel Shahian's declaration describes the billing attorneys' and paralegals' background and professional experience and the reasonableness of their billing rates. See Shahian Decl., ¶17 *et seq.* The declarations describe the work done, the results achieved and proffers supporting billing records. Chandy Decl., ¶¶17-67; Shahian Decl., **Exhibit 1**.

The total "base" amount billed was \$50,451.00. Shahian Decl., ¶29 and **Exhibit 1** thereto. Plaintiff seeks a "lodestar multiplier" of 1.35 in light of, among other things, the contingency representation, the conduct of the litigation and the outcome achieved. See *id.* at ¶22 *et seq.*; see also Memorandum of Points and Authorities (MPA), Motion for Fees and Costs, p.1 *et seq.* The motion seeks an additional \$2,500 for estimated further attorney's fees in connection with this motion. *Id.* at ¶47.

Plaintiffs' motion is further supported by a Request for Judicial Notice ("Plaintiff's RJN") referencing orders in multiple other cases in state and federal court, including what appear to be proffered quotations from several cases included in the body of Plaintiff's RJN. See Plaintiff's RJN filed December 8, 2025. The Request for Judicial Notice is DENIED. The RJN fails to attach true and correct

copies of any of the matters as to which Plaintiff's requests judicial notice. Nor is the Court inclined to take judicial notice of purported quotations as recited in the requesting party's pleading without the proffering of a true and correct copy of the subject source document.

Defendant filed an Opposition on April 14, 2026, along with various opposition documents, including objections ("Defendant's Objections to Chandy Decl." and "Defendant's Objections to Shahian Decl.") and an opposition declaration ("Cronin Decl.").

Plaintiffs filed a Rely on June 8, 2026, along with a supplemental Declaration of Emily R. Rader ("Rader Decl.") and objections to Counsel Cronin's declaration ("Plaintiff's Objections to Evidence") on the same date. That reply declaration includes a breakdown of the billings incurred in responding to the opposition. Rader Decl., ¶16 *et seq.* Those fees total \$4,590.00. *Id.* (10.0 hours at \$360/hr. plus 2.0 hours at \$495/hr.).

Defendant's Objections to Chandy Decl.

Objection No. 1: OVERRULED.

Objection No. 2: OVERRULED.

Objection No. 3: OVERRULED.

Defendant's Objections to Shahian Decl.

Objection No. 1: OVERRULED.

Objection No. 2: OVERRULED.

Objection No. 3: OVERRULED.

Objection No. 4: OVERRULED.

Objection No. 5: OVERRULED.

Objection No. 6: OVERRULED.

Objection No. 7: OVERRULED.

Objection No. 8: OVERRULED.

Objection No. 9: OVERRULED.

Objection No. 10: OVERRULED.

Objection No. 11: OVERRULED.

Objection No. 12: OVERRULED.

Objection No. 13: OVERRULED.

Objection No. 14: OVERRULED.

Objection No. 15: SUSTAINED. The referenced paragraph is stricken and has not been considered by the Court.

Objection No. 16: OVERRULED.

Objection No. 17: SUSTAINED. The referenced paragraph is stricken and has not been considered by the Court.

Objection No. 18: OVERRULED.

Objection No. 19: OVERRULED.

Objection No. 20: OVERRULED.

Objection No. 21: SUSTAINED. The referenced paragraph is stricken and has not been considered by the Court.

Objection No. 22: OVERRULED.

Objection No. 23: OVERRULED.

Plaintiff's Objections to Evidence

Objection No. 1: OVERRULED.

Objection No. 2: OVERRULED.

Objection No. 3: OVERRULED.

Objection No. 4: OVERRULED.

Objection No. 5: OVERRULED.

Analysis

A trial court has broad authority to determine the amount of reasonable attorneys' fees. *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see CJER, *California Judges Benchbook: Civil Proceedings—Trial* (2025) ("CJER Civ. Pro.—Trial"), § 16.83. The fee setting inquiry ordinarily begins with the "lodestar," i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate. *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at 1095. California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award. *Id.* The reasonable hourly rate is that prevailing in the community for similar work. *Id.* The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. *Id.* The trial court makes its determination after consideration of a number of factors, including the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances in the case. *Id.* at 1096.

The Court has reviewed the stated hours and the nature of the legal work reflected in the proffered billing entries, considering, among other things, the work described as well as the particular information provided by all parties as to the nature and necessity of such work. The Court has considered the hourly rates by timekeeper for such work and the number of hours reasonably expended by such timekeepers. The Court has also otherwise considered the hours sought and charges therefor in view of all of the relevant factors, as noted above.

The Court finds the hours billed and the total base fees of \$50,451.00 (not inclusive of the \$4,000 original estimate for work on any reply) to be reasonable and necessary to the conduct of the litigation, with the exception of the following items which the Court, in the exercise of its discretion, does not find were reasonable as billed:

June 23, 2021 (8.0 hrs. - \$3,960.00). Time for drafting discovery motion. Reduced to 3.0 hrs. at \$495.00/hr. for a total of \$1,485.00.

June 24, 2021 (7.1 hrs. - \$3,514.50). Time for drafting discovery motion. Reduced to 3.0 hrs. at \$495.00/hr. for a total of \$1,485.00.

August 9, 2021 (5.0 hrs. - \$2,175.00). Time for drafting “motion for relief” and related work. Reduced to 2.5 hrs. at \$435.00/hr. for a total of \$1,087.50.

August 9, 2021 (3.4 hrs. - \$1,479.00). Time for drafting “motion for relief” and related work. Reduced to 2.5 hrs. at \$435.00/hr. for a total of \$1,087.50.

January 11, 2022 (4.8 hrs. - \$1,968.00). Time to “finalize” ex parte application to continue trial. Reduced to 2.0 hrs. at \$410.00/hr. for a total of \$820.00.

The foregoing items totaled \$13,096.50 as billed. The reduced time awarded for these items totals \$5,965.00, resulting in a net reduction of \$7,131.50. With that reduction, the \$50,451.00 base fees becomes **\$43,319.50** (\$50,451.00 less \$7,131.50), which amount the Court finds to be reasonable and necessary to the conduct of the litigation. The Court further finds that the time incurred in connection with the reply, **\$4,590.00**, be reasonable and necessary to the conduct of the litigation. \$43,319.50 plus \$4,590.00 equals **\$47,909.50**.

The Court further finds that the proposed lodestar multiplier of 1.35 is just and appropriate in view of all of the relevant factors. \$47,909.50 times 1.35 equals **\$64,677.83**.

Defendant argues that Plaintiff waited until December 8, 2025, 637 days after the case was dismissed, to file this motion and is therefore time barred, citing Rule 3.1702(b)(1) of the California Rules of Court (CRC) and other authority.

A Notice of Settlement of Entire Case was filed on November 9, 2023. The Court has considered and rejects Defendant’s contention that the motion is untimely. Although that notice reference the anticipated filing of a request for dismissal by March 11, 2024, no such dismissal appears of record on the Court’s docket. Indeed, the Court’s records do not indicate any final disposition and certainly no judgment of dismissal was ever entered.

Costs

The Court finds that the claimed costs in the amount of **\$4,603.30** are recoverable and were necessary to the conduct of the litigation.

Disposition

The Court finds and orders as follows:

1. The Motion for Fees and Costs is GRANTED.
2. Plaintiff is awarded and shall recover from Defendant attorneys’ fees in the sum of **\$64,677.83**.
3. Plaintiffs is awarded and shall recover from Defendant costs of suit in the sum of **\$4,603.30**.
4. Plaintiff to prepare the order after hearing and final form of judgment of dismissal.

14. 9:00 AM CASE NUMBER: N25-1906
CASE NAME: JONATHAN DUNCKEL VS. RUSSELL VACARRO
***HEARING ON MOTION IN RE: FEES AND COSTS**
FILED BY:
TENTATIVE RULING:

Parties to Appear.